when they are no longer needed for the purpose for which they are reserved.

OSCAR L. CHAPMAN,
Secretary of the Interior.

OCTOBER 3, 1950.

[F. R. Doc. 50-8785; Filed, Oct. 6, 1950; 8:45 a. m.]

[Public Land Order 674]

SOUTH DAKOTA

AMENDING PUBLIC LAND ORDER NO. 10, OF JULY 8, 1942

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 10 of July 8, 1942, withdrawing certain public lands in Ts. 10 S., Rs. 1 and 2 E., Black Hills Meridian, South Dakota, from all forms of appropriation under the public-land laws, including the mining laws, and reserving them for the use of the War Department as an Ordnance Storage Depot Site, is hereby amended by deleting therefrom the following paragraph added thereto by Executive Order No. 9526 of February 28, 1945:

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

Public Land Order No. 10 is further amended so that the withdrawal made thereby shall expressly include withdrawal from appropriation under the mineral-leasing laws, and by substituting the words "Department of the Army" for the words "War Department," occurring in the order and in the title thereof.

OSCAR L. CHAPMAN,
Secretary of the Interior.

OCTOBER 3, 1950.

[F. R. Doc. 50-8786; Filed, Oct. 6, 1950; 8:45 a. m.]

[Public Land Order 675]

NEW MEXICO

AMENDING EXECUTIVE ORDER NO. 8923 OF OCTOBER 24, 1941

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 8923 of October 24, 1941, withdrawing public lands in sec. 4, T. 10 N., R. 2 E., and secs. 28 and 33, T. 11 N., R. 2 E., New Mexico Principal Meridian, New Mexico, from all forms of appropriation under the public-land laws, including the mining laws, and reserving them for the use of the War Department as a National Guard rifle range, is hereby amended by deleting therefrom the following paragraph added thereto by Executive Order No. 9526 of February 28, 1945:

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

Executive Order No. 8923 is further amended so that the withdrawal made thereby shall expressly include withdrawal from appropriation under the mineral-leasing laws, and by substituting the words "Department of the Army" for the words "War Department," occurring in the order and in the title thereof.

OSCAR L. CHAPMAN,
Secretary of the Interior.

OCTOBER 3, 1950.

[F. R. Doc. 50-8787; Filed, Oct. 6, 1950; 8:45 a. m.]

[Public Land Order 676]

SOUTH DAKOTA

WITHDRAWING PUBLIC LAND FOR USE OF THE DEPARTMENT OF THE ARMY FOR FLOOD CONTROL PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following described public land is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use in connection with the Fort Randall Flood Control Project, South Dakota, under the supervision of the Department of the Army as authorized by the act of December 22, 1944, 58 Stat. 887;

FIFTH PRINCIPAL MERIDIAN

T. 95 N., R. 66 W.,
Sec. 8, NW¼SE¼.

The area described contains 40 acres.

It is intended that the land above described shall be returned to the administration of the Department of the Interior when it is no longer needed for the purpose for which it is reserved.

OSCAR L. CHAPMAN,
Secretary of the Interior.

OCTOBER 3, 1950.

[F. R. Doc. 50-8788; Filed, Oct. 6, 1950; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 934]

MILK IN LOWELL-LAWRENCE, MASSACHUSETTS, MARKETING AREA

NOTICE OF PUBLIC MEETINGS FOR CONSIDERATION OF PROPOSED AMENDMENTS TO RULES AND REGULATIONS

Notice is hereby given that pursuant to authority contained in Order No. 34, as amended, regulating the handling of milk in the Lowell-Lawrence, Massachusetts, marketing area (7 CFR Part 934) and in accordance with the Administrative Procedure Act (60 Stat. 237), public meetings will be held at Skip's Diner, 116 Chelmsford Street, Chelmsford, Massachusetts, on October 9, 1950, at 7:30 p. m., and at Room C, Y. M. C. A. Building, 40 Lawrence Street, Lawrence, Massachusetts, on October 10, 1950, at 7:30 p. m., to consider proposed amendments to the rules and regulations (7 CFR 934.101 et seq.) issued by the market administrator to effectuate the terms and provisions of the order. The proposed amendments are made necessary by amendments to the terms and provisions of the order effective October 1, 1950 (15 F. R. 6581). All persons who desire to submit oral data, views, or arguments in connection with the proposed amendments will be given an opportunity to do so at the meetings. All persons who desire to submit written data, views, or arguments in connection with the proposed amendments shall submit them to the market administrator at 21 Main Street, Andover, Massachusetts, by mail or otherwise, in time to be received not later than 5:15 p. m. October 11, 1950.

The market administrator proposes that the aforesaid rules and regulations be amended to read as follows:

§ 934.101 *General.* Sections 934.101 to 934.108, inclusive, are made by the market administrator pursuant to § 934.11 (b) of "Order No. 34 As Amended, Issued by the Secretary of Agriculture, Regulating the Handling of Milk in the Lowell-Lawrence, Massachusetts, Marketing Area."

§ 934.102 *Classification of milk and other fluid milk products*—(a) *Application of this section.* The provisions of this section shall apply only to fluid milk products which are not required to be classified as Class I milk pursuant to § 934.16.

(b) *Fluid milk products disposed of to consumers.* Fluid milk products disposed of by a handler or dealer to consumers shall be classified as follows:

(1) Milk, flavored milk, cultured or flavored skim milk, and buttermilk shall be classified as Class I milk, except as provided in subparagraphs (3) and (4) of this paragraph.

(2) Cream and skim milk shall be classified as Class II milk.

(3) Sour milk and milk otherwise unsuitable for human consumption as milk, which is disposed of to a livestock farmer and used by him for animal feed, shall be classified as Class II milk.

(4) Flavored milk, cultured or flavored skim milk, and buttermilk, which is disposed of to a livestock farmer and used by him for animal feed, shall be classified as Class II milk.

(c) *Fluid milk products manufactured into other milk products.* Fluid milk products manufactured by a handler or dealer into other milk products shall be classified as Class II milk, unless the resulting milk product is subsequently reconverted into fluid milk products for which Class II utilization is not established. Specifically, the following shall be considered to be milk products:

Acidophilus milk.
Butter.
Buttermilk powder.
Casein.
Cheese and cheese paste.
Condensed milk.
Condensed buttermilk.
Condensed skim milk.
Eggnog.
Evaporated milk.
Evaporated skim milk.
Ice cream, ice cream mix, and similar frozen desserts.
Milk powder.
Nonfat dry milk solids (skim powder).
Whey and whey products.
Yarhout (Bulgarian milk).

(d) *Miscellaneous uses.* Fluid milk products used or disposed of by a handler or dealer in accordance with this paragraph shall be classified as follows:

(1) Milk dumped or discarded shall be classified as Class I milk, unless established as sour milk or milk otherwise unsuitable for human consumption as milk.

(2) Fluid milk products dumped or discarded, except milk suitable for human consumption as milk and classified as Class I pursuant to subparagraph (1) of this paragraph, shall be classified as Class II milk.

(3) Fluid milk products destroyed or spilled under extraordinary circumstances shall be classified as Class II milk.

(4) Plant shrinkage in excess of 2 percent of the volume of fluid milk products handled shall be classified as Class I milk.

(e) *Inventories.* All milk products on hand at any plant at the close of the month may be classified tentatively as Class II milk. Final classification shall be made when disposition of the milk products takes place.

§ 934.103 *Plant shrinkage.*—(a) *Application of this section.* The provisions of this section shall apply in determining the quantity of plant shrinkage to be classified as Class II milk pursuant to § 934.15 (b) (2).

(b) *Requirement to establish plant shrinkage.* (1) Plant shrinkage may be considered as established only if both the volume of fluid milk products handled during the month and the total of specific uses of fluid milk products during the month are established.

(2) If plant shrinkage is not established, the total quantity of fluid milk products not specifically accounted for shall be classified as Class I milk.

(c) *Computation of volume handled and of total of specific uses.* (1) The volume of fluid milk products handled by a handler during the month shall consist of the total quantity of fluid milk products physically received at the handler's regulated plants, plus the opening inventory and minus the closing inventory of fluid milk products at such plants. The quantity of syrup or other flavoring material contained in receipts and inventories of flavored milk and flavored skim milk shall not be considered part of the volume handled.

(2) The total of specific uses of fluid milk products by a handler during the month shall consist of the total quantity of fluid milk products physically handled, and for which specific disposition is established, at the handler's regulated plants. The quantity of syrup or other flavoring material contained in flavored milk or flavored skim milk so disposed of shall not be considered part of the total of specific uses.

(d) *Determination and classification of plant shrinkage.* (1) Plant shrinkage shall be determined by deducting the total of specific uses from the volume handled. The remainder, if it can reasonably be considered to represent the loss or shrinkage in fluid milk products normally incurred by the handler in the receiving, processing, packaging, and distribution of the milk and milk products handled by him, shall be considered his plant shrinkage.

(2) The classification of plant shrinkage shall be determined by computing 2 percent of the volume handled, and comparing the result with the plant shrinkage. Plant shrinkage not in excess of such result shall be classified as Class II milk. Plant shrinkage in excess of such result shall be classified as Class I milk.

§ 934.104 *Due dates of reports of nonpool handlers*—(a) *Application of this section.* The provisions of this section shall apply with respect to the due dates for the filing of reports by nonpool handlers relating to their receipts and utilization of fluid milk products, pursuant to § 934.31.

(b) *Reports of buyer-handlers and producer-handlers.* (1) Except as provided in subparagrahs (2) and (3) of this paragraph, each buyer-handler and producer-handler shall file a report for each calendar quarterly period of the year within 8 days after the end of the period.

(2) Within 8 days after the end of any month in which a buyer-handler or producer-handler receives outside milk or exempt milk, or receives Class I milk from a New York, Boston, Worcester, or Springfield order regulated plant, he shall file a separate report for that month and for each prior month of the same calendar quarterly period. He shall also file a separate report for each subsequent month of that quarterly period within 8 days after the end of such month.

(3) Each buyer-handler and producer-handler who is requested in writing by the market administrator before the end of the month to file a separate report for any month shall file the report within 8 days after the end of the month.

(c) *Reports of handlers who operate unregulated distributing plants.* Each handler who operates an uuregulated plant from which Class I milk is distributed directly to consumers in the marketing area during the month shall file a report within 8 days after the end of such month.

§ 934.105 *Detail and form of handlers' reports*—(a) *Application of this section.* The provisions of this section shall apply with respect to the detail and form for the filing of reports by all handlers relating to their total receipts and utilization of fluid milk products, pursuant to §§ 934.30 and 934.31.

(b) *Requirements applicable to all handlers.* Each handler's report shall include the following information:

(1) The receipts of fluid milk products at each plant from other handlers and dealers, and from any of the handler's unregulated plants.

(2) The receipts of milk from his own production, and from other dairy farmers.

(3) The butterfat test of Class I milk received from New York, Boston, Worcester, or Springfield order regulated plants.

(4) The respective quantities of Class I milk disposed of inside the marketing area and outside the marketing area, showing the quantities disposed of to consumers and the quantities disposed of to individual handlers or dealers.

(5) The total quantity of fluid milk products disposed of as Class II milk, and information as to the quantities so disposed of to individual handlers or dealers.

(c) *Requirements applicable to pool handlers.* Each pool handler's report shall include the following additional information:

(1) The respective total quantities of milk received at each plant from producers whose farms are located not more than 40 miles from the City Hall in Lawrence; from producers whose farms are located more than 40 miles from the City Hall in Lawrence but not more than 80 miles from the State House in Boston; and from producers whose farms are located more than 80 miles from the State House in Boston; and the number of producers in each group.

(2) Separate totals of receipts at each plant from producers who are members of each association of producers and from nonmembers; and the number of producers in each group.

(3) The name of each producer and the quantity of milk received from him, with the information subdivided according to the producer's farm location and member or nonmember status, as indicated in subparagraphs (1) and (2) of this paragraph. However, this subparagraph shall not apply to any pool plant